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CRIMINAL LAW LECTURE NOTE

Stealing and Other Related Offences

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Introduction

One of the major goals of criminal law is the protection of property. One of the means that this is made possible is through the offence of stealing. The law therefore prohibits the taking of a property belonging to another person without the person's consent given freely. The criminal Code (CC) and Penal Code (PC) criminalizes the act of stealing.

Having said this, what then is stealing?

Stealing which may also be referred to as theft is the wrongful taking or conversion of property belonging to another. According to section 383 (1) of the Criminal Code, when a person fraudulently takes anything capable of being stolen, or fraudulently converts to his own use or the use of any other person anything capable of being stolen, he is said to steal that thing. Theft instead of stealing in section 286(1) as whoever intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to take it is said to commit theft. It is also an offence for anyone to unlawfully treat or deal with the property of another person as your own.

In all the cases, the intention to permanently deprive the owner of such property or the person who is in rightful possession of it must exist to amount to stealing.

(1) Conversion
(2) Intention

What constitute stealing?

It is an established fact that for a conduct to constitute stealing, some ^{must} elements but be present. Below are some of these elements:

(1) Taking:

By virtue of section 383(6) of the criminal code, a person shall not be deemed to take a thing unless he moves the thing or causes it to move. Again, under section 286(2) of the penal code, a moving affected by the same act causing severance may be a theft. To constitute a "taking" it is not necessary for the thief to take the thing completely into his possession. Rather, he is deemed to have taken a thing if he moves it or causes it to move. For instance, if Ben with the intention to steal a purse from John's bag begins to take out the purse when James suddenly enters the room and he drops it back into the bag, Ben's conduct amount to stealing. ✓

(2) Conversion

In the absence of taking there must be a 'conversion' of property. The word conversion is not defined in the Criminal Code therefore it has been suggested that conversion under S.383 has the same meaning as that under the common law. Conversion in this sense therefore is found in the case of Lancashire and Yorkshire RLY Co v Mcnicol (1999) 88 which held that conversion mean dealing with goods in a manner inconsistent with the right of the true owner, provided there is an intention on the part of the defendant to deny the owner's right or assert a right which is inconsistent with the

right of the true owner. Conversion therefore can arise as a result of destruction, sale, pledge, alteration or use of the property in a manner inconsistent with the right of the owner. See Pitman and Hehl. By Virtue of S. 383, these act of conversion can only amount to stealing if it is done with one of the fraudulent intents specified in S.383(2). See Ekpenyong. The position is the same under the penal code, although the word 'dishonesty' is used instead of the fraudulent used in the Criminal Code. Conversion must be to the use of any other person or to the use of the accused person.

It is important to note at this point that it is not every taking or conversion that amount to stealing. For instance, if someone picks up an item to merely ascertain what it is, that is merely an acquisition taking which does not constitute stealing. Furthermore, if he takes it with a mistaken belief that it is his own, he can raise the defence of honest claim of right under section 23. He can also raise the defence of mistake under section 23 if at the time of taking he was labouring under an honest and reasonable mistake of fact.

For taking or conversion to amount to stealing therefore, there must be an element of fraud.

(3) Intention to steal:

Section 383 of the Criminal Code sets out six intents, any one of which will make a taking or conversion fraudulent.

- (a) An intent to permanently deprive the owner of the property temporary of it will not amount to stealing. See R.V Eason.

You must note that it will still amount to stealing if you take someone's property with the intention to permanently deprive the owner of it notwithstanding that you thereafter changed your mind and returned it.

- (b) An intent to permanently deprive any person who has any special property in the thing of such property.
- (c) An intent to use the thing as a pledge or security. For instance, if someone uses another person's property as security for loan, it will be deemed that you fraudulently took the property.
- (d) An intent to part with the property in a condition as to its return, which the person taking or converting it may be unable to perform.
- (e) An intent to deal with it in such a manner that it cannot be returned in the condition in which it was at the time of the taking or conversion.
- (f) In case of money, an intent to use it at the will of the person who takes or converts it, although he may intend afterwards to apply the amount to the owner.
- (g) In the case of lost property, if you find such property and convert it, this will not be regarded as fraudulent if at the time of converting it you did not know who is the true owner or if you reasonably believe that owner cannot be found.

PUNISHMENT

Punishment For Stealing

The punishment for stealing where no other punishment is stipulated by law is three years imprisonment (section 390 CC). there are however, stiffer penalty of an imprisonment for life where the thing stolen concerns wills, postal matters or relating to property etc. see section 390(1) of the Criminal Code

Under the Penal Code theft attracts maximum imprisonment for five years or to both fine and imprisonment.

(4) Things capable of being stolen

It is crucial to note that it is not everything that is capable of being stolen. Every inanimate thing whatever which is the property of any person and which is movable, is capable of being stolen. Section 382 of the Criminal Code contents several examples of such things. According to the section, every non-living thing which is the property of another and is capable of being made movable is capable of being stolen. Under section 286(2) of the Penal Code, electricity current is capable of being stolen by being abstracted, diverted or consumed. This section contains provisions about tame animals and animals wild by nature.

Living things like animals, whether domestic, wild by nature or tamed, such as dog, monkey etc. are capable of being stolen since the definition of property includes everything animate or inanimate, capable of being subject of ownership (section 1 CC). However, if wild animals are in the enjoyment of their natural habitat they are

not capable of being stolen but their dead bodies are. It means that if a hunter captures a wild animal, he cannot be said to have stolen it except the forest is a reserved one where hunting is prohibited. Again, it is important to note that land cannot be stolen because it is an immovable property. Also a property which is abandoned or not capable of being owned such as corpse is not capable of being stolen because it cannot be a subject of ownership. However, corpse can possess such peculiar attribute as to justify its preservation on scientific ground, such as where a person has performed some skillful work on the corpse in his lawful possession.

BURGLARY AND HOUSEBREAKING

The law makes the act of breaking and entering into the house of another with the intention of committing a crime an offence.

By virtue of section 411 of the Criminal Code, any person who breaks and enters the dwelling-house of another with the intent to commit a felony therein, or having entered the dwelling-house of another with a like intent or having committed a felony in a dwelling-house of another, breaks out of the dwelling house, is guilty of a felony. If the offence is committed in the daytime it is house-breaking and is punishable with imprisonment for 14 years. If it is committed at night, it is called burglary and is punishable with imprisonment for life.

ELEMENTS OF HOUSEBREAKING

The essential ingredients to be proved in the offence of housebreaking are; that the building in question is a dwelling-house, intent to commit felony that there is breaking in and/or out, and entry into the building.

(1) Breaking

Breaking is an essential ingredient of both burglary and housebreaking. The act of breaking in can be committed by the actual breaking of an external or internal part of a building or by unlocking, pulling, pushing, lifting of a door and window shutter which are ordinarily used for closing or opening a building or used as giving passage to the building or from one part of the building to another.

There is also a breaking in where entrance into the building is obtained by means of a threat or by trick. For instance, if a person intending to commit a crime in a house knocked on the door and pretended to be looking for someone in the premises made one to open the door and steal something in the process, this will amount to housebreaking. It is not the same as where the door is left open and a person enters to steal. Since you cannot claim that the person breaks in, this cannot amount to housebreaking or where the door is partially open and the thief pushes it further in order to be able to gain entrance into the building. However, it will amount to breaking in if entrance is obtained into a building by collusion

with any person in the building or if entrance is gained through the chimney or any small opening in the building left open for any use other than as a means of entrance.

(2) Entering

What will constitute entering is covered by section 410 of the Criminal Code which states that "a person is said to enter a building as soon as any part of his ^{or part of any} body instrument used by him is within the building. In R V Apesl, it was held that if while opening a window the offender's hand or finger enters the room of his victim, this will be sufficient entry. However, the instrument projected by the accused person into the building was actually used to steal or commit felony from the building such as where the accused used the instrument to draw a suit, handset etc. from the building.

(3) Dwelling-House

Section 1 of the Criminal Code define a dwelling-house to include any building or structure or part of a building or structure, which is for the time being kept by the owner or occupier for the residence therein of himself, his family, or servants or any of them. The that there was nobody living in the building at the time is immaterial. The deciding factor whether a building is a dwelling-house or not is the use to which the building in question is put to and not what it is built for. Thus, a caravan or houseboat used as a house will qualify as a dwelling-house for this purpose. In R V Halloran, it was

held that a motel unit occupied by a lodger for a week would qualify for a dwelling-house within the meaning of this rule.

(4) Intent to Commit Felony

This is basically the mens rea of the offence of housebreaking or burglary. The accused person must intend to commit felony (serious crime) within the building. It need not necessarily be the intent to steal anything from the building but the intent to commit a crime e.g murder, arson etc. must be present at the time of breaking into the building. If such intent is lacking at that material time but is only formed after the breaking in and entry into the building is completed, there is no housebreaking.

Punishment

The punishment for housebreaking is imprisonment for fourteen years and for burglary, it is imprisonment for life (section 411 CC). An attempt to commit the offence attracts seven years imprisonment while that of burglary it is imprisonment for fourteen years (section 412 CC). Breaking in/out of other buildings carries stiffer punishment.